

RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: Mr. A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on August 23, 2023. The complaint is directed against GENERAL LOGISTICS SYSTEMS SPAIN, S.A. with NIF A61441523 (hereinafter, GLS). The reasons for the complaint are as follows: The complainant states that he was the recipient of a package whose delivery management was carried out by the entity being complained against and indicates that on August 23, 2023, he received a call from the delivery person in charge of the delivery, to whom he expressly stated that he did not want the package, along with his data, to be deposited at the home of a neighbor, but rather at a delivery point.

The delivery person accepted this request; however, the complainant was later notified that the package had been delivered to a neighbor, despite his express opposition to this.

He provides a recording of the conversation held with the delivery person regarding the package he was to receive, in which he expresses his desire for the package to be delivered to a pickup point, and a WhatsApp conversation where he is informed that, despite the above, the package was delivered to a neighbor.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to GLS for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the provisions of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on October 16, 2023, as recorded in the acknowledgment of receipt in the file.

On November 15, 2023, this Agency received a written response indicating that "...Regarding the shipment referred to in this request for information, and in view of the documentation accompanying the file, an immediate investigation has been conducted into the circumstances of the shipment and delivery claimed by Mr. A.A.A. Thus, we inform you that on August 22, 2023, we received an order from our client, the company WOODS & GO DESIGN, S.L. (commercial name CREATE) for the shipment of a package, with Mr. A.A.A. as the recipient.

In turn, GLS entrusted the delivery of this shipment to IRIAPACK S.C.P. (hereinafter IRIAPACK), with CIF J67269704 and address at Calle Sant Jordi 55, 08150, Parets del Vallés (Barcelona), being this a transport company with which GLS has also signed a service lease contract for the collection and delivery of packages in the province of Barcelona. In this regard, we must indicate that IRIAPACK carries out its activities with its own technical and human resources and under its full responsibility, using the GLS brand based on that service contract. We attach as DOCUMENT No. 1 the transport contract signed between GLS and IRIAPACK on March 24, 2023, which includes, as Annex VIII, the Data Processing Agreement.

Thus, after the package was collected by our collaborator on the morning of August 23, 2023, it was dispatched for delivery that same day, being delivered to its destination by a delivery person from IRIAPACK at approximately 14:28 to a neighbor.

In this regard, after we were made aware of the present complaint indicating that the recipient had not authorized delivery to another person, but had given instructions for it to be redirected to one of our convenience points or ParcelShop, the corresponding investigations were initiated by our entity. Thus, it has been determined that a delivery person from IRIAPACK arrived at Mr. A.A.A.'s home for the delivery of his package. Finding him absent, another employee of IRIAPACK called the complainant to inform him that the delivery person was at his home, but while Mr. A.A.A. gave instructions for his package to be redirected to a ParcelShop, it seems that by mistake the messenger who was at his home, without waiting for his instructions, delivered the package to a neighbor, with the intention of him

having the package as soon as possible... Notwithstanding the above, we must point out that GLS considers the delivery of any package to a different address than that indicated by the recipient (or from our network of convenience points) without the recipient's consent to be a serious breach of service. Therefore, once GLS confirmed the incorrect delivery of this shipment by the IRIAPACK messenger, our Audit Department opened the corresponding file for the collaborating company, imposing the penalty provided for in our procedures. We attach as DOCUMENT No. 3 the communication sent to the collaborator informing them of the penalty..."

THIRD: On November 21, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

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LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In Article 4 of the GDPR, points 7 and 8 specify what is to be understood by the data controller and the data processor. Thus, we have:

"7) 'data controller' or 'controller' means the natural or legal person, public authority, service, or other body which, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its designation may be laid down by the law of the Union or of the Member States;

8) 'data processor' or 'processor' means the natural or legal person, public authority, service, or other body which processes personal data on behalf of the controller;..."

In short, the data controller is the natural or legal person or public authority that decides on the processing of personal data, determining the purposes and means of such processing.

By virtue of the principle of proactive responsibility, the data controller must implement technical and organizational measures to comply with and be able to demonstrate compliance, taking into account the risks involved in the processing of personal data.

On the other hand, the data processor is the natural or legal person, public authority, service, or other body that provides a service to the controller that involves the processing of personal data on behalf of the latter.

In this sense, the controller is the one who decides the "why" and "how" regarding personal data, and the processor is the one who carries out the processing on behalf of the controller.

The role of the data processor in the GDPR is defined in Article 28, which establishes the requirements that must be met regarding data protection:

1. When processing is to be carried out on behalf of a data controller, the controller shall choose only a processor that provides sufficient guarantees to implement appropriate technical and organizational measures, so that the processing will be in compliance with the requirements of this Regulation and

will ensure the protection of the rights of the data subject.

2. The data processor shall not engage another processor without the prior written authorization, specific or general, of the controller. In the latter case, the processor shall inform the controller of any intended changes concerning the addition or replacement of other processors, thereby giving the controller the opportunity to object to such changes.

3. The processing by the processor shall be governed by a contract or other legal act under the law of the Union or of the Member States, which binds the processor to the controller and establishes the subject matter, duration, nature, and purpose of the processing, the type of personal data and categories of data subjects, and the obligations and rights of the controller. Such contract or legal act shall stipulate, in particular, that the processor:

a) shall process the personal data only on documented instructions from the controller, including with regard to the transfers of personal data to a third country or an international organization, unless required to do so by Union or Member State law applicable to the processor; in such a case, the processor shall inform the controller of that legal requirement before processing, unless that law prohibits such information on important grounds of public interest;

b) shall ensure that persons authorized to process personal data have committed themselves to confidentiality or are under an appropriate statutory obligation of confidentiality;

c) shall take all necessary measures in accordance with Article 32; (...)

These specific obligations may be supervised by data protection authorities, without prejudice to the oversight that may be carried out regarding compliance with the GDPR or the LOPDGD by the controller or the data processor.

In this case, GLS entrusted the delivery of this shipment to IRIAPACK S.C.P. (hereinafter IRIAPACK), with CIF J67269704 and registered office at Calle Sant Jordi 55, 08150, Parets del Vallés (Barcelona), being this a transport company with which GLS has also entered into a service lease contract for the collection and delivery of packages in the province of Barcelona.

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In any case, GLS was the company responsible for delivering the package to the claimant in the manner agreed upon with her; however, it was delivered to a third party without her consent and against her express opposition.

III

Article 5.1.f) of the GDPR

Article 5.1.f) "Principles relating to processing" of the GDPR states:

"1. Personal data shall be:

(...)

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction or damage, by applying appropriate technical or organizational measures ("integrity and confidentiality")."

On August 23, 2023, the claimant received a call from the delivery person responsible for delivering a package, to whom she expressly stated that she did not want the package, along with her data, to be left at a neighbor's house, but rather at a delivery point, which the delivery person accepted; however, she was later notified that the package had been delivered to a neighbor, despite her opposition in this regard.

In this case, it is noted that the personal data of the claimant, name and surname, as well as the postal address, were exposed to a third party, the neighbor, as a result of the receipt of the shipment of which she was the recipient, with GLS being the company responsible for the delivery of the package. Although this data was already known by the neighbor; consequently, there has been no undue exposure of the personal data of the claimant.

IV

Article 32 of the GDPR

Article 32 "Security of processing" of the GDPR states:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the varying risks of probability and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;
- d) a process for regularly testing, assessing, and evaluating the effectiveness of technical and organizational measures to ensure the security of processing.

2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a consequence of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this Article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data only processes such data on instructions from the controller, unless he or she is required to do so by Union or Member State law."

In the present file, there is the land transport contract signed by IRIAPACK S.C.P and GLS dated March 24, 2023, which includes a delivery process.

In this delivery process, in addition to the standard delivery, there are instructions for carrying out an alternative delivery, in case the standard delivery is not possible. Thus, in the event that standard delivery is not possible, such delivery must be made to those neighbors located on the same landing. GLS considers the delivery of any package to an address different from that indicated by the recipient, without the recipient's consent, to be a serious breach of service. Therefore, once GLS confirmed the incorrect delivery of that shipment by the IRIAPACK messenger, the corresponding file was opened against the collaborating company, and the penalty provided for in the delivery procedures was imposed on it.

GLS states in the document submitted to the AEPD on November 15, 2023, that "...it is aware of the criteria established by the AEPD in PS-00280-2022 dated November 3, 2022, and, consequently, a series of measures have been implemented by GLS to ensure compliance by all collaborators in the GLS network with the criteria set by the AEPD, which remain in effect today.

Among these measures are the following:

- The update of the "Practical Guide for the Delivery Person" regarding the Delivery Procedure in case the recipient is absent, emphasizing the prohibition of making deliveries to third parties (neighbors, doormen, and...

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alternative addresses different from Parceshops) without prior authorization from the recipient, as well as the responsibility of the collaborating entity in charge of the delivery in obtaining the recipient's authorization.

- Periodic communications have been sent to all collaborating entities in the national territory to emphasize the importance of complying with current regulations and the resolutions of the AEPD. This

reminder has been published on the GLS Spain intranet, reaching all GLS collaborators via email, in addition to being sent through instant messaging applications to achieve greater dissemination and reading of the same.

- A reminder has been published that appears every time any delivery person accesses the Delivery App, stipulating the prohibition of deliveries to neighbors or doormen without express authorization.
- Mentions of the delivery procedure and resolution PS-00280-2022 were included as part of the training material (in-person training) received by all collaborators joining the GLS Network, which has already been reinforced for pre-existing collaborators...”.

Consequently, GLS has adopted additional measures subsequent to the filing of the complaint; therefore, the application of Article 65.6 of the LOPDGDD is appropriate, which expressly states that: “(...) 6. After the admission for processing, if the person responsible or in charge of the processing demonstrates having adopted measures for compliance with the applicable regulations, the Spanish Agency for Data Protection may resolve the filing of the complaint when specific circumstances advise the adoption of other more moderate solutions or alternatives to corrective action, provided that no prior investigative actions or any of the procedures regulated in this organic law have been initiated (...)”.

Thus, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to GENERAL LOGISTICS SYSTEMS SPAIN, S.A. and to the complaining party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as prescribed by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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